

indifference; the weight of that inference is for the trier of fact, and it is not a basis to strike the allegations from the pleading.

Paragraphs 5 and 23 supporting Plaintiff's negligence causes of action

Items 1 and 2 of the motion do not target punitive damages allegations I. They seek to excise the allegation that directors, administrators, employees, agents, and contractors are “granted access by CANYON LAKE POA” (TAC ¶ 5) and the allegation that some of Mimms’ threats, intimidation, and transport of Plaintiff occurred while he was on duty, in a position of ostensible authority, under the supervision of Allied and CLPOA (TAC ¶ 23). These are core factual allegations of access, control, course and scope, and supervision that support Plaintiff’s first and second causes of action for negligence and negligent hiring, supervision, and retention—claims whose sufficiency CLPOA has not challenged by demurrer.

As noted by Plaintiff, matter is “irrelevant” only if it is not essential to the claim, is neither pertinent to nor supported by an otherwise sufficient claim, or demands relief not supported by the allegations. (CCP § 431.10, subds. (b), (c).) Paragraphs 5 and 23 are essential to Plaintiff’s claims. CLPOA does not contend otherwise; it simply disagrees with them and asks the Court to resolve that disagreement in its favor on extrinsic evidence at the pleading stage. That is not the purpose of a motion to strike. (*PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1683; June 16, 2026, Ruling [a motion to strike “tests the pleadings alone and not the evidence or other extrinsic matters”].) CLPOA’s factual defenses—its reading of the contract, the guest-list account, its position on Mimms’ duty status—may be tested on summary judgment or at trial, on evidence, with Plaintiff afforded the opportunity to respond in kind.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2600732	NOLTEN vs COUNTY OF RIVERSIDE	MOTION FOR LEAVE TO AMEND

Tentative Ruling: Petitioner Nicolas Nolten’s (“Petitioner”) Motion for Leave to File a First Amended Petition is denied.

Under Code of Civil Procedure section 473(a), a court may allow a party to amend any pleading “in furtherance of justice, and on such terms as may be proper.” While California courts generally maintain a “policy of great liberality in permitting amendments at any stage of the proceeding” (*Rocky Mountain Export Co. v. Colquitt* (1960) 179 Cal.App.2d 204, 207), the exercise of that discretion will not be disturbed on appeal unless there is a clear showing that it was abused (*Carroll v. Abbott Laboratories, Inc.* (1982) 32 Cal.3d 892, 897-898).

A judge properly denies a motion for leave to amend if the proposed amended pleading fails to state facts sufficient to state a cause of action or if the amendment would be futile (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230). Furthermore, a judge should deny leave to amend when the facts are undisputed and the nature of the claim is clear, but no amendment would change the result (*Komorsky v. Farmers Ins. Exch.* (2019) 33 CA5th 960, 971).

Nonetheless, the Court finds that Petitioner's motion fails to meet the legal requirements for amendment and seeks to introduce a procedurally improper document into the record.

The Proposed Amendment is Legally Unnecessary and Futile In his motion, Petitioner acknowledges that the proposed First Amended Petition "does not contain new allegations or defenses" but rather "expands upon the original allegations and defenses" (Petitioner's Motion for Leave to Amend at 6:20-24). Petitioner further admits that the purpose of the amendment is not to correct a mistake or add a claim, but to "properly and fully present [Petitioner's] arguments so that they can be complete when heard on the merits" (Declaration of Nicolas Nolten in Support of Motion at ¶ 12).

Under Code of Civil Procedure section 473(a)(1), amendments must be "in furtherance of justice." Because Petitioner concedes the original Petition is already adequate and that the amended filing adds no new legal theories or jurisdictional facts, the amendment is legally unnecessary. When an amendment would be futile or fails to add facts sufficient to change the result of the litigation, denial is appropriate (*Foxborough v. Van Atta* (1994) 26 Cal.App.4th 217, 230).

Failure to Comply with Notice Pleading Requirements Under California's notice pleading system, a pleading must present ultimate facts in "ordinary and concise language" (Code of Civil Procedure section 425.10(a)(1)). Petitioner's proposed First Amended Petition is the opposite of concise; it is an over 50-page document that functions as a legal brief rather than a pleading.

The proposed petition contains over 30 pages of detailed legal and factual arguments regarding eleven incidents of alleged misconduct, including extensive citations to the administrative record, hearing exhibits, and over twenty California cases (Proposed First Amended Petition at 11-49). A pleading is intended to provide notice of the factual basis of the claims sufficient to allow the opposing party to prepare a defense, not to express all legal arguments Petitioner wishes to offer on the merits (*Doe v. City of Los Angeles* (2007) 42 Cal. 4th 531, 549-550).

The Court finds that Petitioner is attempting to file an oversized opening brief under the guise of an amended petition. Allowing Petitioner to embed over 30 pages of argument into the pleadings would circumvent the Court's scheduling orders and the page limitations established by California Rule of Court 8.504(d).

While the Court recognizes Petitioner's *pro per* status and his diligence in spending approximately 50 hours re-drafting the writ petition (Declaration of Nicolas Nolten at ¶ 13), the Court cannot allow a procedurally defective document that flagrantly fails to comply with the conciseness required by Code of Civil Procedure section 425.10(a)(1). Petitioner's original Petition remains the operative pleading, and his legal arguments shall be heard through the normal briefing process.